Development Application Information Pack

We have put together the following forms and information to help you when lodging an application through the NSW Planning Portal, these forms and information sheets are also available on our website:

- Planning Portal Fact Sheet
- Development Application Checklist
- Construction Certificate Application Checklist
- Section 68 Application Checklist
- Document and Plan Requirements Fact Sheet
- Owners Consent Form
- Agreement for Certification Work
- Statement of Environmental Effects Fact Sheet
- Residential Waste Management Plan
- Cost of Works Estimation

Should you require any assistance with any of this information please contact our Customer Service Officers between 8:30am – 5:00pm weekdays.

As a service provider we strive for service excellence, diligence and openness. Council welcomes feedback in regards to all services provided, email Council at council@wollondilly.nsw.gov.au, call us on 4677 1100.

Wollondilly Shire Council

FACT SHEET

Electronic Lodgment of Development Applications via the NSW Planning Portal

What is the NSW Planning Portal?

The NSW Planning Portal allows for electronic lodgement of applications and certificates through a portal web interface provided by The Department of Planning, Industry and Environment.

The Portal allows for a more convenient and environmentally friendly process for the lodgement of your application, allowing you to lodge online, anywhere and anytime.

Your personal dashboard in the Portal enables you to track all your applications and certificates lodged through the Portal, regardless of which Council is the approval body. All information relating to your application will be communicated through the Portal.

What are the benefits of using the NSW Planning Portal?

There are several benefits for electronic lodgement of Applications and Certificates through the Portal including:

- Significant time and money saved on document and plan printing
- Environmentally friendly option
- No more multiple emails, USB's or CD's to lodge an application
- Ability to submit an application online, at a time convenient to you
- Standardised application form fields across all local government areas
- Ability to copy your current entered information into new applications

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Wollondilly Shire Council

FACT SHEET

- Automatic notification of application milestone stages throughout the assessment process
- Improved transparency of the application process
- Ease of payment of external agency concurrence fees

What applications can I submit through the NSW Planning Portal?

Wollondilly Shire Council is accepting the following applications through the NSW Planning Portal

- Development Applications
- Section 4.55 Modification Applications
- Complying Development Certificates
- Construction Certificates
- Occupation Certificates
- Subdivision Certificates

How do I lodge an application through the NSW Planning Portal?

1. Access the NSW Planning Portal, a quick reference guide on how to register for an account is available here.
2. Follow the prompts to lodge your application, if you require assistance please refer to the Submit a Development Application guide. In addition to the minimum documents requested by the Portal applicants should ensure they include the required documents for the type of application being submitted as per Councils Development Application Checklist, Construction Certificate Checklist or S68 Checklist (insert links) depending on the type of application being applied for. Council also has a DA Pack which includes most of the relevant documents you will need to lodge an application. By ensuring you have submitted all the required documents in the required format will assist in a quicker determination of your application.

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Wollondilly Shire Council

FACT SHEET

3. Once you have submitted the application through the Portal, Council will review the application for completeness within two business days. Based on the information submitted, Council will make a decision to accept the application, request additional information or return the application to you. Should additional information be required, you will receive an email outlining the required information.

4. Fees - Once the application is ready to be accepted, Council will send you an additional information request through the Portal and provide you with a fee quote for the applicable fees.

5. Payment of Fees – Fees can be paid through Councils 'Make a Payment' portal via credit card. If for some reason you wish to pay another way please contact Council. Please note that applications are not legally lodged with Council until the application fees have been paid in full.

6. Save a copy of your payment receipt to the Portal and close the additional information request for payment. Saving a copy of your receipt assists in faster lodgement of your application.

7. Communications – all communications throughout the assessment of your application will be to the nominated applicant. The progress of the application can also be followed on Councils DA Tracker.

8. Determination – the final determination documents will be saved to the Portal and you will receive an email advising that they are now available. You can then view, save or print your documents.

If you need more information or assistance:

- Access the NSW Planning Portal help pages and articles
- Review the Frequently Asked Questions
- Contact ServiceNSW on 1300 305 695

- Contact Councils Customer Service on (02) 4677 1100

Call
02 46771100

Email
council@wollondilly.nsw.gov.au

DA LODGEMENT - REQUIRED DOCUMENTS

Documents required to be lodged with a Development Application ✓ = Required ⊙ = May be required × = Not required Click on a heading for more information		Residential Ancillary Buildings (Shed, Garage, Carport, Awning, Retaining Wall, Swimming Pool)	Dwelling Secondary Dwelling	Dwelling Additions	Dual Occupancy	Multi-Dwellings	Boarding House Residential Flat Buildings Mixed Use Development	Intensive Agriculture Animal Boarding	Depots (All Types)	Farm Building	Childcare Centres Place of Public Worship	Commercial Alterations & Addition / Fitout	Commercial/Retail/ Industrial Development	Signage	Subdivision Only
Plans & Drawings (Click to View Document & Plan Requirements)	Elevations & Sections	✓	✓	✓	✓	✓	✓	⊙	⊙	✓	✓	⊙	✓	✓	×
	Erosion & Sediment Control Plan	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	⊙	✓	×	✓
	Excavation Plan	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	✓
	Floor Plans – Existing & Proposed	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	×	×
	Landscape Plans	⊙	✓	⊙	✓	✓	✓	✓	✓	✓	✓	⊙	✓	×	✓
	Photo Montages	⊙	⊙	⊙	⊙	⊙	✓	×	×	×	⊙	×	✓	✓	×
	NSW Subsidence Advisory Approved Plans / Conditions	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙	⊙	⊙	⊙	⊙	⊙	⊙
	Schedule of Colours & External Finishes	✓	✓	⊙	✓	✓	✓	⊙	⊙	✓	✓	⊙	✓	✓	×
	Shadow Diagrams -2 + storeys	✓	✓	✓	✓	✓	✓	×	×	×	✓	⊙	✓	×	×
	Site Analysis Plan	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Site Plan	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Streetscape Character Analysis	×	⊙	×	⊙	✓	✓	×	×	×	✓	⊙	⊙	⊙	×
	Subdivision/Strata Plan	×	×	×	⊙	✓	✓	×	×	×	×	⊙	×	⊙	✓
	Survey Plan	⊙	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	⊙	✓
	Stormwater Drainage Concept Plan / OSD	✓	✓	⊙	✓	✓	✓	✓	✓	✓	✓	×	✓	⊙	✓
	3D Model	×	×	×	×	⊙	⊙	×	×	×	⊙	×	⊙	⊙	⊙
Supporting Documentation	Access Report	×	×	×	×	×	✓	⊙	⊙	⊙	✓	✓	✓	×	×
	Acoustic Report/Noise Assessment	×	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	✓	⊙	⊙	×	×
	Arborist Report	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙
	Bio-diversity Assessment Report (BDAR)	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙
	BASIX Certificate (current)	⊙	✓	⊙	✓	✓	✓	×	×	⊙	×	×	×	×	×
	Bushfire Report	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙
	Clause 4.6 Variation	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙
	Construction Management Plan	×	×	×	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙
	Contamination /Remediation Action Plan	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	✓
	Cost of Work Estimation	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙
	Crime Risk Assessment	×	×	×	×	⊙	⊙	×	×	×	×	×	⊙	×	×
	Design Verification Statement	×	×	×	×	×	✓	×	×	×	×	×	×	×	×
	Evidence of Approved Agricultural Use	×	×	×	×	×	×	×	×	✓	×	×	×	×	×
	List of Existing & Proposed Category 1 Fire Safety Provisions	×	×	×	×	⊙	⊙	×	⊙	×	⊙	⊙	⊙	×	×
	Flood Safety Assessment	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙
	Flora and Fauna Assessment	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙
	Geotechnical Report	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙	×	⊙
	Heritage Impact Statement	⊙	⊙	⊙	⊙	⊙	⊙	×	×	⊙	⊙	⊙	⊙	⊙	⊙
	NCC (BCA) Report	⊙	⊙	×	⊙	⊙	⊙	⊙	⊙	⊙	✓	⊙	⊙	×	×
	Owners Consent (all owners)	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Odour Report	×	×	×	×	×	×	⊙	⊙	⊙	⊙	⊙	⊙	×	⊙
	Plan of Management	×	×	×	×	×	×	✓	✓	⊙	✓	⊙	✓	×	×
	Preliminary Site Investigation	×	×	×	×	×	×	×	×	×	×	×	×	×	⊙
	Social & Health Impact Assessment	×	×	×	×	⊙	⊙	⊙	⊙	×	✓	×	⊙	×	⊙
	Solar Access Report	×	×	×	×	⊙	⊙	×	×	×	⊙	×	×	×	×
	Statement of Environmental Effects	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Strata or Community Association Endorsement	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Structural Engineers Report	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	⊙	×
	Swept Paths/Driveway Long Sections	⊙	⊙	⊙	⊙	⊙	⊙	⊙	✓	⊙	✓	⊙	✓	×	⊙
	Traffic and Parking Assessment	×	×	×	×	⊙	✓	⊙	✓	⊙	✓	⊙	⊙	×	⊙
	Waste Management Plan	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓	⊙	✓	⊙	✓
	Waste Water Report	⊙	⊙	⊙	⊙	⊙	⊙	✓	⊙	⊙	⊙	×	✓	×	⊙

NOTE: Applications must provide all relevant plans and documentation included in the table above. Failure to submit all information required may result in the application being returned, rejected or refused. For any other application type not included above please contact Council on 02 4677 1100 to arrange a pre-lodgement meeting for more specific information.

CC LODGEMENT - REQUIRED DOCUMENTS

Documents required to be lodged with a Construction Certificate Application (if not provided with the DA) ✓ = Required ■ = Not Required • = May Be Required Click on a highlighted text for more information		Residential Ancillary Buildings (Shed, Garage, Carport, Awning, Retaining Wall, Swimming Pool)	Dwelling / Secondary Dwelling	Dwelling Additions	Dual Occupancy	Multi-Dwellings	Group Home/Boarding House Residential Flat Buildings Mixed Use Development	Farm Building	Childcare Centres Place of Public Worship	Commercial Alts & Adds	Signage
Plans & Drawings	Elevations & Sections	✓	✓	✓	✓	✓	✓	✓	✓	•	✓
	Floor Plans – Existing & Proposed	✓	✓	✓	✓	✓	✓	✓	✓	✓	
	Landscape Plans	•	✓	•	✓	✓	✓	✓	✓	•	
	Schedule of Colours & External Finishes	✓	✓	•	✓	✓	✓	✓	✓	•	✓
	Site Analysis Plan	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Site Plan	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Viewed Document & Plan Requirements Information	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
Supporting Documentation	'Any required information stipulated in Conditions of Development Consent as "Prior to CC'	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Access Report						•	•	✓	✓	
	Acoustic Report/Noise Assessment		•	•	•	•	•	•	✓	•	
	Contract to provide building certification work	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	BASIX Certificate (current)	•	✓	•	✓	✓	✓	•			
	Building Specifications	✓	✓	✓	✓	✓	✓	✓	✓	✓	•
	Bushfire Compliance Specifications	•	•	•	•	•	•	•	•		
	Construction Management Plan		•	•	•	•	•	•	•	•	
	Long Service Levy- evidence of payment (for work with a value $250,000 & over)	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	List of Existing & Proposed Category 1 Fire Safety Provisions					✓	✓	✓	✓	✓	
	NCC (BCA) Report	•	•		•	•	•	•	✓		
	Owners Consent (all owners)	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓
	Solar Access Report					•	•		•		•
	Structural Engineers Design Plans	•	•	•	•	•	•	•	•	•	•
	Sydney Water Tap In Approval	•	•	•	•	•	•	•	•	•	•

NOTE: Construction Certificate Applications must provide all relevant plans and documentation included in the table above. Failure to submit all information required in may result in the application being returned, rejected or refused. For any other application type not included above it is recommended that you contact Council on 02 4677 1100

S68 - REQUIRED DOCUMENTS

Document required to be lodged with a S68 Application

✓ = Required
▢ = Not Required
• = May Be Required

Click on highlighted text for more information

		Septic Systems such as Aerated System, Absorption Trench, Worm Farm	Solid Fuel Fireplace (Wood Burning)	Temporary Events conducted on Public or Private Land	Manufactured Dwellings
Plans and Drawings	Elevation Plans of the proposed manufactured dwelling				✓
	Elevation Plans to indicate the proposed chimney/flue		✓		
	Floor Plan of the development	✓			✓
	Floor Plan to indicate the location of the fireplace		✓		
	Site Plan indicating location of activities e.g. (stage, toilets, amusement rides, food, trucks, carparking, first aid etc)			✓	
	Site Plan indicating the location of the proposed manufactured dwelling				✓
	Site Plan to indicate the proposed irrigation / disposal area	✓			
Supporting Documents	Approval to Operate a Sewerage Management System application form	✓			
	Building Specifications (relevant to a manufactured dwelling)				✓
	Bushfire Report				•
	Cost of Development Estimate				✓
	Details of the particle emissions and efficiency of the fireplace		✓		
	Manufacturer's Specifications of the proposed fireplace		✓		
	Manufacturer's Specifications of the proposed on-site wastewater system	✓			
	NSW Health Accreditation Certificate	✓			
	Operational Management Plan (incl. start/finish times; nature of event/s; traffic management etc.)			✓	
	Owners Consent form (all owners)	✓	✓	✓	✓
	Schedule of Colours & External Finishes				✓
	Sydney Water 'Tap in' Approval				•
	Statement of Environment Effects			✓	✓
	Waste Management Plan			✓	✓
	Wastewater Management Report	✓			

NOTE: S68 Applications must provide all relevant plans and documentation included in the table above. Failure to submit all information required in may result in the application being returned, rejected or refused. For any other application type not included above it is recommended that you contact Council on 02 4677 1100

DOCUMENT AND PLAN REQUIREMENTS

Please use Councils application requirements checklist to help you prepare the relevant plans and supporting documents required to submit your application via the NSW Planning Portal. Documents not meeting the following requirements will not be accepted and the application returned via the NSW Planning Portal.

- All documentation must be lodged in PDF format
- Your application must contain the 'required items' as per Council application checklist for the development proposed. For any 'required items' not supplied you must include a comment in the statement of environmental effects as to why this item is not required. For confirmation of 'may be' required items please contact Council on (02) 4677 1100
- Previously approved plans bearing Council's stamps must not be submitted for further approval
- Illegible or basic hand drawn plans not to scale will not be accepted
- All documents and plans should be named appropriately with the heading names used in the application checklist and as individual documents
  e.g. Site Plan
  Elevation and Section Plans
  Floor Plans
  Statement of Environmental Effects
  Survey Plan
- Documents are not to be password protected, in folders or zip files
- Plans must be rotated for correct orientation e.g. landscape or portrait format

When preparing plans for submission they should also comply with and include the following information:

Plan requirements

(a) Drawn to minimum A3 size at a scale of 1:100 (preferred) or 1:200
(b) Highlight proposed works to distinguish from existing structures

Site Plan *(to scale)* including but not limited to:

(a) The location, boundary dimensions, site area and north point of the land
(b) The location and uses of existing structures on the land
(c) The location of any proposed structures or works in relation to the land's boundaries and adjoining development
(d) Proposed and finished levels of the land in relation to existing and proposed works
(e) Existing vegetation and trees on the land
(f) Proposed parking arrangements, entry and exit points for vehicles, and provision for movement of vehicles within the site (including dimensions where appropriate)
(g) The location and uses of buildings on sites adjoining the land

Floor Plans *(to scale)* including:

(a) Dimensions
(b) Layout
(c) Partitioning
(d) Room sizes
(e) Intended uses of each part of the building
(f) Access for disabled, where relevant
(g) BASIX commitments e.g. Skylight, rainwater tank

Elevation and Section Plans *(to scale)* including:

(a) Dimensions
(b) Existing levels of the land in relation to buildings and roads (RL or AHD)
(c) Relevant Orientation e.g. North, South
(d) Calculated roof pitch and ridge height

Please Note: Council may ask for additional information of a technical nature or require clarification of the information submitted during assessment of the application

OWNER'S CONSENT

For use when lodging an application through the NSW Planning Portal

OWNER(S) DETAILS AND CONSENT

Property Address:	
Property Owner/s Name: (all owners)	
Postal Address:	
Email:	Phone:

I/we the undersigned are the owner(s) of the property described in this application and consent to its lodgement. I/We hereby permit a duly authorised officer of Wollondilly Shire Council to enter the land or premises to carry out inspections and undertake work as required for the administration of the Act(s), Regulations or Planning Instrument.
I/we also nominate the applicant as the Single Point of Contact (SPOC) for the application process. This is to ensure communication and information flow is conveyed in a systematic and scheduled manner to a single person, the SPOC. Information provided through the SPOC is considered final and binding to prevent problems from being addressed multiple times at different points and to different people which ultimately saves a lot of time and frustration over the course of the application process.

Owner's Signature(s)	
Print Name(s)	
Please indicate	☐ Private Land Owner ☐ Sole Director ☐ Director/Secretary/Company Seal

Note: All owner(s) of the land, subject to this application, must sign this form.
Note: If signing on the owner's behalf, please state your legal authority and provide documentary evidence (e.g., copy of power of attorney, trust deed etc).
Note: In the case of land that is the subject of a strata scheme under the *Strata Schemes (Freehold Development) Act 1973* or the *Strata Schemes (Leasehold Development) Act 1986*, the owners corporation for that scheme must be constituted under the *Strata Schemes Management Act 1996*.A development application for a lot in a strata plan does not require the consent of the Body Corporate when that work does not affect any common property.
Note: In the case of land that is a community, precinct or neighbourhood parcel within the meaning of the Community Land Development Act 1989, the association for the parcel must provide consent.
Note: If signing on behalf of a corporate body or company, the application should be signed by an authorised person under common seal and the position of that person in the corporate body or company must be stated on the form. Alternatively, the Common Seal is not required if two Directors or authorised persons sign the application form, or if you are a sole Director. **An ASIC search must also be attached.**

Privacy policy

The information you provide in this application will be held and used by Wollondilly Shire Council, and any relevant State agency, to enable the assessment of your application under the Environmental Planning and Assessment Act 1979 (EPA Act), Local Government Act 1993 (LG Act) or other applicable State legislation.

The information you provide may also be used by the Council in exercising its functions under other legislation, including the Government Information (Public Access) 2009 (NSW) (GIPA Act) under which the Council may be required to release information which you provide to us where it is in the public interest.

In completing this form you will be prompted to supply information that is personal information for the purposes of the Privacy and Personal Information Protection Act 1998 (PPIP Act). The supply of this information is voluntary. However, if you cannot provide, or do not wish to provide the information sought, your application may not be able to be accepted or Council may not be able to process your application.

The information supplied with your application may be made available to the public for comment if the development is designated development, or is required to be advertised under Council's Development Control Plan or Public Participation Plan. All documents will also be made publically available at Council's Offices and on Council's online DA tracking system. Written notification of the application may also be provided to the neighbourhood. You have the right to access and have corrected information provided in your application.

Please ensure that the information is accurate and advise us of any changes. If you require any further information about how your personal information is being collected, held or used please contact Council's Privacy Officer on **(02) 4677 1100**.

Additional information

For further information please contact **Wollondilly Shire Council** 62-64 Menangle Street, Picton, NSW 2571

Postal Address PO Box 21, Picton, NSW 2571

P (02) 4677 1100 | **E** council@wollondilly.nsw.gov.au | **W** www.wollondilly.nsw.gov.au

CONTRACT TO PROVIDE BUILDING CERTIFICATION WORK

Wollondilly Shire Council

1. Introduction

This contract has been developed in accordance with the provisions of Section 31 of the Building and Development Certifiers Act 2018 and Part 5 of the Building and Development Certifiers Regulation 2020.

2. Application Details

Name	
Address	
E-mail Address	
Contact Number	
Appointment Made By	☐ Owner ◯ Person having the benefit of the Approval

Note:
The Owner or Person having the benefit of the Development Consent or Complying Development Certificate can appoint a Principal Certifier.
Applicant must also complete / sign Parts 3, 5 and 6 of this Contract.

3. Development of the Site and Works to be Undertaken

Development Description	
Address / Lot and DP	
Approval Reference and Date	
Consent Authority	Wollondilly Shire Council

4. Plans, Specifications, Documents

Refer to the approved plans and referenced documents approved as part of the Development Consent, Construction Certificate or Complying Development Certificate.

5. Details of the Certification Work to be carried out

The following certification works are requested to be carried out:

- ☐ **Construction Certificate** under Part 6.8 of the EP&A Act
- ☐ **Complying Development Certificate** under Part 4.28 of the EP&A Act
- ☐ Appointment as Principal Certifier under Part 6.6 (1) of the EP&A Act for building works
- ☐ Carrying out of inspections and relevant functions under Part 6.5 of the EP&A Act
- ☐ **Occupation Certificate** under Part 6.10 of the EP&A Act

6. Owner / Applicant Declaration

As the owners or person having the benefit of the Development Consent or Complying Development Certificate stated on this form, I appoint Wollondilly Shire Council to provide the building certification works selected (as per Item 5) of this Contract.

- I declare that all the information provided within this Contract is, to the best of my knowledge, true and correct.
- I understand I am entering into a contract with Wollondilly Shire Council as required by Section 31 of the Building and Development Certifiers Act 2018. I have freely chosen to engage Wollondilly Shire Council to carry out all necessary building certification works relevant or related to the development.
- I have read, understood and accept the terms and conditions contained in this Contract and have read the documents accompanying this contract and understand the roles and responsibilities of both myself and Council (the Registered Certifier).

Signed by Owner(s) _____ **Date** _____

7. Service Fees and Charges

All fees and charges mentioned in this Agreement are based on Wollondilly Shire Council's Fees and Charges published on its website.

The fees for inspections and certification works are as quoted by Wollondilly Shire Council and are payable upon appointment and on lodgement of any Construction Certificate or Complying Development Certificate. All fees are inclusive of GST.

Additional inspections required due to staging of building works or variations in the construction sequence may attract an additional fee.

Re-inspections of works arising as a result of incomplete or unsatisfactory mandatory critical stage inspections, or other inspections, may attract an additional fee.

Where the Owner / Person having the benefit of the consent, the Principal Contractor or the Owner Builder, requests site meetings or site inspections, in addition to any mandatory critical stage inspection requirement, or other inspection requirement, Wollondilly Shire Council reserves its right to impose or require the payment of an additional fee.

Where the Principal Certifier becomes or is made aware of a matter that requires investigation or site visits not elsewhere dealt with by this Agreement, Wollondilly Shire Council reserves its right to impose or require the payment of an additional fee.

Where additional fees occur, payment is ordinarily required prior to provision of the service. Where the service is completed prior to payment, an invoice will be issued within twenty-one (21) days after the completion of that work.

In circumstances where Wollondilly Shire Council is appointed under this Agreement, and the requisite fee payment is not honoured, the Owner / Person having the benefit of the consent acknowledges and accepts liability for all or any unpaid fees and any associated debt recovery costs plus interest incurred from the time of the appointment.

The Owner / Person having the benefit of the consent acknowledges and accepts that Wollondilly Shire Council, may suspend its work where fees have not been paid.

8. Registered Certifier Details	
Name	Wollondilly Shire Council
Address	Frank McKay Building, 62-64 Menangle Street, Picton NSW 2571
Postal Address	PO Box 21, Picton NSW 2571
E-mail Address	council@wollondilly.nsw.gov.au
Contact Number	(02) 4677 1100

9. Council's Declaration

Once this contract is satisfactorily completed and signed by the Applicant / Owner, accompanied by the payment of the relevant fees, Wollondilly Shire Council considers this contract to be appropriately executed. The date on which the contract is made, will be the date of signature when signed by the Applicant / Owner OR the date of receipt of payment of fees for the selected Building Certification Work.

Signed on behalf of Council _____

Terms and Conditions

This Appointment and Service Agreement (the Agreement) forms part of the Contract for Council to provide Building Certification Work in accordance with Section 31 of the Building and Development Certifiers Act 2018 and applies where the Owner or the Person having the benefit of a consent elects to appoint Wollondilly Shire Council to issue a Construction Certificate or Complying Development Certificate and / or act as the Principal Certifier in accordance with the Environmental Planning & Assessment Act 1979.

The functions under the Environmental Planning & Assessment Act 1979, which are to be carried out as part of this Agreement, relate to the nominated Development Consent, Construction Certificate or Complying Development Certificate, as issued by Wollondilly Shire Council, including all endorsed and referenced plans and documentation.

The Agreement also encompasses any subsequent Modifications to the abovementioned approvals, subject to payment of applicable fees and charges, and unless otherwise advised in writing

1. Errors and Omissions

1a - In the event of any negligent act or omission by the Owner / Person having the benefit of the consent, Wollondilly Shire Council shall be indemnified against and released from all liability, damages, compensation, actions, claims, disputes and suites of any kind which may arise before, during or after the period of the agreement in relation to the appointment of Wollondilly Shire Council.

2. Disclaimers

2a - The Owner / Person having the benefit of the consent acknowledges and agrees that the Certifier is not responsible for supervising and managing the Building Work / Project and is not responsible for ensuring the Building Work has been carried out in accordance with the terms and conditions of any contracts the Client has entered unto with the Principal Contractor / Sub Contractors responsible for carrying out the building works or that Building Work has been completed free from any defects. The Certifier disclaims any and all liability for any loss or damage arising from any latent defects in the Building Work.

2b – The Owner / Person having the benefit of the consent acknowledges and agrees that the issue of any Occupation Certificate by the Principal Certifier does not constitute a representation by the Principal Certifier to the Owner / Person having the benefit of the consent, that the building is free from any latent defects.

2c – All inspections undertaken by the Principal Certifier are based on a visual inspection and do not comment therefore on aspects, faults or otherwise, which are below ground, covered up in any way, or which are not apparent at the time of the inspection, or any parts of the Building which are not apparent at the time of the inspection. Any part of the Building that have been or are cover, unexposed or inaccessible will not be inspected and therefore any notification of the result of an inspection will have no reference to those parts.

2d – The Building Certification Work may be totally or partially suspended by the Principal Certifier during any period in which the Principal Certifier may be prevented or hindered from performing the Services through any circumstances outside the Certifiers reasonable control or where such performance is rendered materially more expensive by such circumstances.

3. Who May Carry Out Certification Work

3a - The details, including name and registration number of the officers employed by Wollondilly Shire Council, any of whom may carry out certification work and inspections under this Agreement, can be found on the NSW Fair Trading's website.

4. Appointment

4a - The Owner / Person having the benefit of the consent shall keep the Principal Certifier informed of any changes to the details of the Principal Contractor (Builder) and any relevant insurance required by the builder. Failure to meet this obligation shall result in the Owner/Person having the benefit of the consent indemnifying Wollondilly Shire Council against any losses suffered as a result of noncompliance with any legislative requirements.

4b - The Owner / Person having the benefit of the consent are responsible for ensuring that a copy of the Home Building Compensation Fund Certificate of Insurance or Owner Builder Permit is submitted to the Principal Certifier, prior to the commencement of building works, where required by the Home Building Act 1989. The commencement of the appointment as Principal Certifier will not occur until this requirement has been met.

4c – Wollondilly Shire Council shall not be responsible for any damages or costs associated with the Principal Certifier's inability to issue an Occupation Certificate due to, but not limited to, the following:

- Non-compliance with a condition of the Development Consent or Complying Development Certificate,
- Non-compliance with BASIX commitments,
- Missed or defective mandatory critical stage inspection, or other inspection,
- Occupation prior to final critical stage inspection being conducted.
- Non-compliance with Development Consent, Construction Certificate and Complying Development Certificate endorsed plans or documentation, and/or
- Failure to pay the required fees.

5. Structural Engineering and Other Specialist Details

5a - Any structural or other specialist engineering details relating to the building work shall be forwarded to the Principal Certifier, prior to commencement of building works. Such details are to confirm compliance with the relevant provisions of the Building Code of Australia and/or Australian Standards, to the satisfaction of the Principal Certifier.

6. Inspection Bookings / Requirements

6a - The Owner / Person having the benefit of the consent acknowledges that certain mandatory critical stage inspections, and other inspections of the building works, are required to be carried out by the Principal Certifier.

6b – Wollondilly Shire Council, where appointed as the Principal Certifier, shall notify the Owner / Person having the benefit of the consent of any mandatory critical stage inspection requirements, and any other inspection requirements, in accordance with of the Environmental Planning and Assessment Act 1979. The mandatory critical stage inspection requirements, and other requirements, are generally listed in the Construction Certificate or Complying Development Certificate approval documentation.

6c - The Principal Certifier will undertake inspections of the relevant building works during construction, and prior to the issue of an Occupation Certificate, so as to ascertain and confirm compliance with the relevant Council Approval, Building Code of Australia and/or other relevant or applicable standards for construction.

6d - The Owner / Person having the benefit of the consent authorise right of entry to the property, and any building works the subject of Development Consent and a Construction Certificate or Complying Development Certificate, by any certifying authority, registered certifier or other person, arranged by or employed by Wollondilly Shire Council to carry out any mandatory critical stage inspections, or other inspections, as deemed necessary or required by the Principal Certifier.

6. Inspection Bookings / Requirements (continued)

6e - The Owner / Person having the benefit of the consent acknowledges that it is the Principal Contractor (Builder) or Owner Builder's responsibility pursuant to the Environmental Planning & Assessment Regulations 2021 to make suitable arrangements with the Principal Certifier to carry out any mandatory critical stage inspection, by calling Wollondilly Shire Council's Customer Service Department on 02 4677 1100, any business day before 4pm.
6f - The Owner / Person having the benefit of the consent acknowledges and accepts that building works must not and cannot proceed to any subsequent stage of construction prior to obtaining a satisfactory inspection result from the Principal Certifier for each relevant stage of construction.
6g - The Principal Certifier will provide confirmation of the outcome of any mandatory critical stage inspection, or other inspection, as soon as practical after the inspection has been completed.
6h - The Owner / Person having the benefit of the consent acknowledges and accepts that a failure to request the Principal Certifier to carry out a mandatory critical stage or other inspection may prejudice and possibly prevent the issue of an Occupation Certificate in respect of the building.

7. Third Party Certification of Works

7a - To ensure compliance with the Development Consent, Construction Certificate, Complying Development Certificate and/or Building Code of Australia, the Owner / Person having the benefit of the consent acknowledges that the Principal Contractor / Owner Builder may be required to submit third party certification from a suitably qualified person in a specific field (e.g. structural engineer) to the Principal Certifier demonstrating a specific matter or element of the building works complies with any relevant standard.
The Principal Certifier will advise when this is required by inspection result or written documentation. Such certification is required to be prepared by a suitably qualified/experienced person and must reference the relevant provisions of the Building Code of Australia, Australian Standards and Development Consent, Construction Certificate or Complying Development Certificate endorsed plans and documentation. This certification is in addition to any mandatory critical stage inspection, or other inspection requirements required to be carried out by the Principal Certifier.

8. Missed Inspections

8a - Where a mandatory critical stage inspection, or other inspection, has been missed, the Principal Contractor / Owner Builder must, within two (2) days of becoming aware that the inspection has been missed, advise the Principal Certifier in writing as to the circumstances causing the inspection to be missed and must supply to the Principal Certifier, all or any documentation requested by the Principal Certifier concerning the unavoidably missed inspection. No further building work shall proceed until approval has been granted by the Principal Certifier.

9. Occupation Certificate

9a - An Occupation Certificate can only be issued by the Principal Certifier.
9b - The Owner / Person having the benefit of the consent acknowledges and accepts that the occupation or use of the whole or any part of a new building, or change of an existing use/classification, must not occur unless an Occupation Certificate has been issued in relation to the building or part.
9c - The Owner / Person having the benefit of the consent acknowledges and accepts that the Environmental Planning & Assessment Act 1979 contains penalty provisions for use or occupation of a building absent a validly issued Occupation Certificate.
9d - Where legislation permits, and the Owner / Person having the benefit of the consent wishes to use or occupy a completed part of a building, an application may be made to the Principal Certifier for an Occupation Certificate. Applications will be considered in accordance with the requirements of the Environmental Planning and Assessment Act 1979, the Development Consent, Construction Certificate or Complying Development Certificate, Building Code of Australia and relevant Australian Standards.
9e – Wollondilly Shire Council's Occupation Certificate fees include or provide for the consideration and issue of one Occupation Certificate only. In circumstances where legislation permits, and the Owner / Person having the benefit of the consent applies for or is issued an Occupation Certificate for a completed part of a building, an additional fee will be payable for the additional Occupation Certificate. Inspections required to determine the Occupation Certificate may attract an additional fee. It is a requirement of the EP&A Act 1979 that an additional Occupation Certificate must be obtained within five (5) years of the issue of an Occupation Certificate for a completed part of a building.
9f - The Owner / Person having the benefit of the consent acknowledges and accepts that works that are not consistent with, or are carried out not in accordance with the relevant Development Consent, Construction Certificate, Complying Development Certificate, or the Building Code of Australia, may result in the Principal Certifier refusing to issue an Occupation Certificate.

10. Work, Health and Safety

10a - Work Health and Safety legislation imposes a duty to ensure the health and safety of all persons on a construction site (a workplace). The statutory obligation extends to the Owner / Person having the benefit of the consent / Principal Contractor / Owner Builder and Person(s) conducting a business, on a construction site under this Agreement. Wollondilly Shire Council requires, as part of this Agreement, that the Owner / Person having the benefit of the consent / Principal Contractor / Owner Builder and/or Person conducting a business, undertakes to take all steps reasonably practicable to ensure the health and safety of any certifying authority, registered certifier or other person, employed by or contracted to Wollondilly Shire Council, whilst that person is carrying out work on a construction site.
10b - The Owner / Person having the benefit of the consent acknowledges and accepts that Wollondilly Shire Council may suspend services where it believes that the health and safety of any certifying authority, registered certifier or other person employed by or contracted to Wollondilly Shire Council is at risk.
10c - The Owner / Person having the benefit of the consent acknowledges and accepts all liabilities that arise as a result of any duty imposed to ensure the health and safety of any certifying authority, registered certifier or other person, employed by or contracted to Wollondilly Shire Council, whilst that person is carrying out work on a construction site.

11. Miscellaneous

11a - The Owner / Person having the benefit of the consent must notify the Principal Certifier in writing of any change in the details or address of the Principal Contractor / Owner Builder.
11b - This agreement and associated fee services shall expire two (2) years after the date of the agreement, where upon Wollondilly Shire Council may cancel the agreement.
11c - Wollondilly Shire Council may terminate this agreement or commence legal proceedings if there is a breach of the terms of this Agreement.
11d - The scope of works covered by the Agreement is limited to building works described in the Construction Certificate or Complying Development Certificate.

Privacy Policy
Any personal information provided by you on this form will be used by Wollondilly Shire Council or its agents to process this application. The provision of this information is voluntary, however, if you do not provide the information, Council will be unable to process your application. This information will be stored in Council's records management system. Once collected by Council, the information can be accessed by you and may also be available to third parties pursuant to Government information (Public Access) Act 2009.

PO Box 972
Parramatta NSW 2124
Tel: 02 9895 0111 TTY: 1300 723 404
ABN 81 913 830 179
www.fairtrading.nsw.gov.au

Information about registered certifiers – building surveyors and building inspectors

Important: this is a summary document only.

Before signing any contract for certification work, make sure you understand your obligations and what you are agreeing to. The Fair Trading website has more information about certifiers.

Under section 31(2) of the *Building and Development Certifiers Act 2018* and clause 31 of the *Building and Development Certifiers Regulation 2020*, a contract to carry out certification work must be accompanied by an applicable document made available on the website of the Department of Customer Service (which includes NSW Fair Trading)[1]. This is the applicable document for certification work involving a certifier registered in the classes of **building surveyor** or **building inspector**, working in either the private sector or for a local council.

This document summarises the statutory obligations of the registered certifier who will assess your development and your obligations as the applicant for the development. It also sets out the types of information that can be found on Fair Trading's online register of registrations and approvals.

Obligations of registered certifiers

The general obligations of registered certifiers include compliance with their conditions of registration, to hold professional indemnity insurance, comply with a code of conduct and avoid conflicts of interest.

Who does a registered certifier work for?

A registered certifier is a public official and independent regulator, registered by the Commissioner for Fair Trading.

Certifiers must carry out work in a manner that is impartial and in the public interest, even if this is not in the interests of the applicant, developer, or builder. Receiving a certificate is not guaranteed – the applicant is paying for the certifier to assess the application and determine *whether or not* a certificate can be issued.

It is a serious offence to attempt to bribe or influence a certifier, attracting a maximum penalty of $110,000 and/or two years imprisonment.

[1] Visit www.fairtrading.nsw.gov.au and search 'certification contracts'.

Obligations of the applicant

An applicant is the person seeking a certificate, or engaging a certifier for other certification work, under the *Environmental Planning and Assessment Act 1979.*

As an applicant, you have the following obligations:

- Appoint, and enter into a contract with, your chosen certifier.
- Pay the certifier's fees before any certification work[2] is carried out.
- Communicate with your builder to ensure the certifier is notified when work reaches each stage. If a mandatory inspection is missed, the certifier may have to refuse to issue an occupation certificate.
- Follow any written direction issued by the certifier and provide any requested additional information to assess an application.
- Meet the conditions of any development consent and ensure the development is carried out in accordance with the approved plans.

What does a registered building surveyor do?

Registered **building surveyors** issue certificates under the *Environmental Planning and Assessment Act 1979* (construction certificates, complying development certificates and occupation certificates), act as the **principal certifier** for development, and inspect building work.

The principal certifier will attend the site to carry out mandatory inspections at certain stages. When construction is complete, the certifier may issue an occupation certificate, which signifies that the work:

- is 'suitable for occupation' – this does not necessarily mean all building work is complete
- is consistent with the approved plans and specifications
- meets all applicable conditions of the approval.

The certifier does not manage or supervise builders or tradespeople or certify that the builder has met all requirements of the applicant's contract with the builder.

What does a registered building inspector do?

Registered **building inspectors** carry out inspections of building work[3] with the approval and agreement of the principal certifier. Building inspectors are not authorised to issue certificates or be appointed as the principal certifier.

[2] Upfront fee payment is required for any work to determine an application for a development certificate or carry out a function of a principal certifier.
[3] Building inspectors may inspect class 1 and 10 buildings under the Building Code of Australia; that is, houses, duplexes and the like; garages and sheds; and structures such as swimming pools, retaining walls and fences.

Principal certifier enforcement powers

If the principal certifier becomes aware of a non-compliance with the development approval, the certifier must, by law, issue a direction to you and/or the builder, requiring the non-compliance to be addressed. If it is not, the certifier must notify the council which may take further action.

The certifier is also required to respond appropriately if a complaint is made about the development.

Finding more information on certifiers

Details of the class of registration each certifier holds, their period of registration, professional indemnity insurance and disciplinary history can be found at www.fairtrading.nsw.gov.au:

- Details of registered certifiers (or search 'appointing a certifier' from the homepage)
- Disciplinary actions against certifiers (or search 'certifier disciplinary register' from the homepage).

Questions?

The Fair Trading website www.fairtrading.nsw.gov.au has information about certifiers, enforcement powers, how to replace a certifier and resolving concerns about a certifier:

- Search 'what certifiers do' for information about a certifier's role and responsibilities.
- Search 'concerns with development' for information about enforcement powers of certifiers, councils and Fair Trading, and how to resolve concerns about a certifier.

The NSW Planning Portal at www.planningportal.nsw.gov.au provides information on the NSW planning and development certification system.

Note, although Fair Trading regulates certifiers, it does not mediate in contract disputes and does not regulate the actions of councils. Visit the Fair Trading website for more information.

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Wollondilly Shire Council

FACT SHEET

How to prepare a Statement of Environmental Effects – a guide for all development

What is a Statement of Environmental Effects?

A Statement of Environmental Effects (**SEE**) is a planning report that sets out the details of a proposed development.

The SEE must explain the likely impacts of the proposal (both during and after the development) and the proposed measures that will mitigate these impacts. It also includes a detailed assessment of the proposed development against all relevant legislation, policies and planning controls that apply to the land or type of development.

When is a Statement of Environmental Effects Required?

In accordance with the *Environmental Planning and Assessment Regulation 2021* (**EPA Regulation**), the SEE is a mandatory document to be submitted with all development applications (other than designated development or State significant development). Otherwise, the application is incomplete and will not be accepted by Council.

What must the Statement of Environmental Effects include?

The EPA Regulation provides requirements for what the SEE must include. As a minimum, it must address the following matters:

1. Description of the site, including:
   - site address details (street number, street name, lot and DP/SP/CP),
   - a description of the existing site (including current use, existing structures/walls/fences, current land conditions and natural features including topography, vegetation and watercourses etc.), and
   - a description of any existing easements, covenants etc. and who they benefit/burden.
2. Description of the proposed development and the environmental impacts, such as:
   - any proposed demolition or building construction (including number of storeys, construction materials/finishes, removal of vegetation, landscaping, earthworks, site grading etc.),

Wollondilly Shire Council

FACT SHEET

- the proposed land use/s (including description of the proposed activities, number of staff to be employed, maximum visitor numbers, hours of operation, carparking etc. (if applicable)),

  Note: Land uses are defined in the 'Dictionary' within *Wollondilly Local Environmental Plan 2011* (https://legislation.nsw.gov.au/view/html/inforce/current/epi-2011-0085#dict).

- what are the likely environmental impacts of the development, how these have been identified, and the steps to be taken to avoid, mitigate and/or manage the impacts.

  Note: Environmental impacts can relate to both the natural and constructed environments and include social impacts.

3. Assessment of the proposed development against the relevant planning instruments, plans and policies, including:
   - *Environmental Planning and Assessment Act 1979*,
   - *Environmental Planning and Assessment Regulation 2021*,
   - State Environmental Planning Policies (**SEPP**). Examples of these plans are:
     - *SEPP (Building Sustainability Index: BASIX) 2004*,
     - *SEPP (Resilience and Hazards) 2021*, and
     - *SEPP (Biodiversity and Conservation) 2021*.
   - *Wollondilly Local Environmental Plan 2011* (i.e. permissibility in the land use zone, minimum lot size, height of buildings etc.),

     Note: All SEPPs and WLEP 2011 are available via the NSW Legislation website (https://legislation.nsw.gov.au/)
   - Wollondilly Development Control Plan 2016 (**WDCP**) (i.e. setbacks, car parking requirements etc.).

     Note: It is recommended to include compliance tables to describe this information.
   - Other relevant Council policies (e.g. Social & Health Impact Assessment, etc.),
4. Other matters
   - Justification for any WDCP non-compliances in accordance with Volume 1, Part 3,
   - Any other relevant legislation, plans, policies etc.

Who can help prepare a Statement of Environmental Effects?

Council's Duty Planner will provide general assistance and advice, but cannot assist in writing the SEE.

It is recommended you engage a suitability qualified planning consultant or draftsperson to assist you in preparing your development application and SEE.

Call 4677 1100

Email
council@wollondilly.nsw.gov.au

Reviewed June 2022

RESIDENTIAL WASTE MANAGEMENT PLAN

Wollondilly Shire Council

To facilitate waste minimisation Council supports on-site sorting and storage of waste products pending re-use or collections. The applicable sections of this form should be completed and submitted with your Development Application, Constructions Certificate or Complying Development Application (as applicable) for all demolition and residential work including outbuildings, renovations and new dwellings.

Site Address					
Unit / Street No.		Street Name			
Suburb / Town					
Lot		Section		DP/SP	

Site Address
Provide a description of buildings and other structures currently on the site:
Provide a brief description of the proposal:

SECTION 1 - Demolition Stage (Site Preparation)

Type of Materials on Site	Estimated Weight	Reuse and Recycle on-site and off-site. Specify proposed reuse or on-site recycling methods	Destination/Disposal Specify Contractor and Landfill site
Excavation Material			
Garden Organics			
Bricks			
Concrete			
Timber			
Plasterboard			
Metals			
Hazardous Material and Lead Based Paints			

SECTION 2 - Construction Stage

Type of Materials on Site	Reuse and Recycle on-site and off-site. Specify proposed reuse or on-site recycling methods	Destination/Disposal Specify Contractor and Landfill site
Excavation Material		
Garden Organics		
Bricks		
Concrete		
Timber		
Plasterboard		
Metals		
Hazardous Material and Lead Based Paints		

NOTE: Details of site area to be used for onsite separation, treatment and storage (including water protection) should be provided on the plan drawings accompanying your application.

SECTION 3 - Use of Premises / Structure

Type of Waste to be Generated Please specify e.g. glass, paper, food waste, off cutes, etc.	**Proposed Storage and Treatment Facilities** e.g. domestic waste bins, waste storage and recycling area, garbage chutes, on-site composting, compaction equipment.	**Destination** Recycling, disposal.

Privacy Policy

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Cost of works estimation guide

This guide applies to estimate cost of works for the following applications:

- Development Applications (DAs)
- Construction Certificates (CCs)
- Complying Development Certificates (CDCs)

Note: this guide is not relevant to subdivision works.

Estimated Cost of Works and Application Fees

The *Environmental Planning and Assessment Regulation 2021* specifies that application fees for Development Applications are to be calculated on the 'estimated cost' of works for a development and other characteristics of the development. WSC also bases its fees for CC's and CDC's on the cost of works for a development.

Planning Circular PS21-022, issued by the NSW Department of Planning & Environment, provides additional information regarding the estimated cost of works.

The cost of a development is not only the costs involved in the construction of building/s, but the costs associated with the entire development proposal, including all ancillary work. A genuine estimate of the cost of works of a development includes:

- The demolition cost of a building/works.
- The construction costs of buildings.
- The costs associated with the preparation of buildings for the purpose for which they are to be used (such as the costs of installing plant, fittings, fixtures and equipment).
- The cost of landscaping works.
- The cost of other ancillary work.
- All related Goods and Services Taxes.

A list of the common development types and minimum rates of construction are included in this guide to help you calculate an accurate ‘estimated cost' of works for a development.

What do I need to do?

Include the following information in your calculation:

- All components of your development, including any earthworks and/or demolition.
- The cost of each work component based on the table in Appendix 2.
- The total cost of your development to show the total estimated cost of all the works that form part of this DA.

Alternatively, you may choose to provide Council with a detailed cost estimate of each component from a practicing registered quantity surveyor or if the development includes elements not listed in the table.

An example of how the guide is used to calculate the costs of works for an addition to a dwelling house and installation of an in-ground swimming pool is shown in the table below.

Cost estimate example

Project Information		
Development Name	EXAMPLE ONLY	
Development Address	EXAMPLE ONLY	
Description of Development	EXAMPLE ONLY	
Floor Areas	Gross Floor Area (additions)	70m^2
	Pool size	40m^2
Demolition Works	EXAMPLE ONLY	20m^2
Other Works	EXAMPLE ONLY	

Type of Development	Area	Costs guide (per m^2)	Total ($)
Ground floor additions	70m^2	$1,700	$119,000
In ground concrete pool	<40m^2	$40,000	$40,000
Demolition	20m^2	$50	$1,000
Total cost of works			**$140,000**

How does Council confirm the estimate provided?

Council will assess the cost of work by applying the unit rates for each component of the proposed work (as identified in the list of rates provided in Appendix 1). The building cost indicators are reviewed periodically to reflect market rates. A number of sources are used to derive the figures in this guide including, but not limited to:

- Rawlinson's Australian Construction Handbook.
- Archicentre Cost Guides.
- Cordell's Building Cost Guides.
- Cost estimates derived from applications lodged with Council.
- Insurance certificates issued for projects under the Home Building Compensation Fund (previously Home Owners Warranty Insurance).

Council will treat development proposals that fall outside the parameters of this guide on their merits. Council will accept the estimated cost you state on your application form within 10% of the cost calculated using this guide. If Council determines that the estimated cost of your proposal is greater than your stated figure by more than 10%, you will be advised, the figure adjusted and an invoice sent to you for any additional fees. Council may reject or defer an application if an estimate cost of works is considered to not be genuine or accurate.

What if I disagree with Council's determination of the estimated costs of works?

If you disagree with Council's determination of the estimated cost of works, you may choose to provide Council with a detailed elemental cost estimate of each component from a practicing registered quantity surveyor for Council to review.

Council will reject applications where it is not satisfied that the estimated cost of works is accurate and genuine. Appendix 1 provides guidance on what Council considers to be accurate and genuine estimated costs of works per square metre.

Cost Estimate Report Templates

The genuine cost of the development proposed in a development application should include costs based on industry recognised prices, including cost for materials and labour for construction and/or demolition and GST.

Various commercial entities publish building and construction cost guides/calculators which can be referenced. The Australian Institute of Quantity Surveyors provides technical guidance on estimating costs and methods of measurement in the Australian Cost Management Manuals.

For DAs with development costs up to $100,000 the estimated cost can be supplied by the applicant or a suitably qualified person using the methodology set out in this guide.

For DAs with development costs between $100,000 and $3 million, Council will require a cost estimate report from an independent, qualified builder, architect, building designer or quantity surveyor using the methodology set out in this guide. Template 1 or Template 2 can be used to estimate the cost of works, depending on the preferred calculation methodology. Template 1 is based on using the proposed floor space while Template 2 is based on the various components of the proposed works.

For development costs exceeding $3 million, a quantity surveyor's cost report will be required. The cost report shall include the methodology to clearly set out how the estimation was calculated.

For large scale developments that are regionally significant, the capital investment value will be required. The capital investment value of a project includes all costs necessary to establish and operate the project, including the design and construction of buildings, structures, associated infrastructure and fixed or mobile plant and equipment (but excluding land costs and GST). Refer to NSW Department of Planning, Environment and Industry Planning Circular (PS21-020).

Template 1 – Based on Floor Space Estimates

Cost estimate report (Floor Space Estimates)

Project Information		
Development Name		
Development Address		
Description of Development		
Floor Areas	Gross Floor Area (Commercial)	m^2
	Gross Floor Area (Residential)	m^2
	Gross Floor Area (Retail)	m^2
	Gross Floor Area (Industrial)	m^2
	Gross Floor Area (Other)	m^2
Parking	Gross Floor Area (Parking)	m^2
	Number of Parking Spaces	
Demolition Works		
Other Works (e.g. pool, fencing, landscaping, tennis court, shed, earthworks, retaining walls etc.)		

Cost (applicant's genuine estimate)			Costs
PROFESSIONAL FEES	% of construction cost	%	$
	% of development cost	%	
	total cost		
DEMOLITION & SITE PREPARATION	x/m² of site area	$	$
	total construction cost		
EXCAVATION	x/m² of site area	$	$
	volume of material removed		
	total construction cost		
CONSTRUCTION Commercial	x/m² of commercial area	$	$
	total construction cost		
CONSTRUCTION Residential	x/m² of residential area	$	$
	total construction cost		
CONSTRUCTION Retail	x/m² of retail area	$	$
	total construction cost		

Cost (applicant's genuine estimate)			Costs
CONSTRUCTION Industrial	x/m² of commercial area	$	
	total construction cost		$
CONSTRUCTION other	x/m² of commercial area	$	
	total construction cost		$
FITOUT Commercial	x/m² of commercial area	$	
	total construction cost		$
FITOUT Residential	x/m² of residential area	$	
	total construction cost		$
FITOUT Retail	x/m² of retail area	$	
	total construction cost		$
FITOUT Industrial	x/m² of industrial area	$	
	total construction cost		$
FITOUT Other	x/m² of retail area	$	
	total construction cost		$
CARPARK	x per space	$	
	x/m² of parking area	$	
	total construction cost		$
TOTAL CONSTRUCTION COST			$
TOTAL GST			$
TOTAL DEVELOPMENT COST			$

I certify that:

- I have provided the estimated costs of the proposed development and that those costs are based on industry recognised prices; and
- the estimated costs have been prepared having regard to the matters set out in clause 255 of the *Environmental Planning and Assessment Regulation 2021*

Applicant Name: (Print)	Applicant signature:	Date:

Template 2 – Based on Works Component

Cost estimate report (Works Components)

Project Information		
Development Name		
Development Address		
Description of Development		
Floor Areas	Gross Floor Area (Commercial)	m^2
	Gross Floor Area (Residential)	m^2
	Gross Floor Area (Retail)	m^2
	Gross Floor Area (Industrial)	m^2
	Gross Floor Area (Other)	m^2
Parking	Gross Floor Area (Parking)	m^2
	Number of Parking Spaces	
Demolition Works		
Other Works (e.g. pool, fencing, landscaping, tennis court, shed, earthworks, retaining walls etc.)		

Cost (applicant's genuine estimate)	
Demolition works (including cost of removal from site and disposal)	$
Site preparation (e.g. clearing vegetation, decontamination or remediation)	$
Excavation or dredging including shoring, tanking, filling and waterproofing	$
Preliminaries (e.g. scaffolding, hoarding, fencing, site sheds, delivery of materials, waste management)	$
Building construction and engineering costs ▪ concrete, brickwork, plastering ▪ steelwork/metal works ▪ carpentry/joinery ▪ windows and doors ▪ roofing	$
Internal services (e.g. plumbing, electrics, air conditioning, mechanical, fire protection, plant, lifts)	$
Internal fit out (e.g. flooring, wall finishing, fittings, fixtures, bathrooms, and equipment)	$
Other structures (e.g. landscaping, retaining walls, driveways, parking, boating facilities, loading area, pools)	$

External services (e.g. gas, telecommunications, water, sewerage, drains, electricity to mains)	$
Cost (applicant's genuine estimate)	
Professional fees (e.g. architects and consultant fees, excluding fees associated with non- construction components)	$
Other (specify)	$
Parking / garaging area	$
GST	$
TOTAL	$

I certify that:

- I have provided the estimated costs of the proposed development and that those costs are based on industry recognised prices; and
- the estimated costs have been prepared having regard to the matters set out in clause 255 of the *Environmental Planning and Assessment Regulation 2021*

Applicant Name: (Print)	Applicant signature:	Date:

Appendix 1

BUILDING COST GUIDE (EXCLUDING PROFESSIONAL FEES)

RESIDENTIAL

Dwelling	**Type**	**Per/ m2 (Incl. GST)**
Project Home	Brick Veneer	$1,860.00
Architectural - Medium Finish	Framed	$2,670.00
	Brick Veneer	$2,890.00
	Full Brick	$3,020.00
Architectural- High Finish	Framed	$3,680.00
	Brick Veneer	$4,040.00
	Full Brick	$4,140.00
Architectural – Prestige Finish	Full Brick	$5,330.00
Prefabricated House		$2,310.00
Additions/extensions (Ground Floor)	Framed	$2,490.00
	Brick Veneer	$2,680.00
Additions/extensions (First Floor)		$4,020.00
Dual Occupancy and Unit Developments (base figure used- basic project house less than 110m^2)	Brick Veneer	$1,860.00
Demolition		$90.00
Swimming Pool (NB Includes a figure for basic pool fencing)	**Size**	**Complete Price (Incl. GST)**
Sprayed Concrete	9.0 x 4.5m with depth ranging from 1.0 to 2.0m	$60,000.00
Fiberglass	9.0 x 4.5m with depth ranging from 1.0 to 2.0m	$45,000.00
Garage/Carport	**Type**	**Square Metre Rate (Incl. GST)**
Carport	Concrete floor, steel frame, metal roof	$480.00
Garage	Concrete floor, metal clad walls, roof on timber frame	$1,100.00
Garage	Concrete floor, cavity brick walls, metal deck roof	$1,260.00
Deck/Pergola	**Type**	**Square Metre Rate (Incl. GST)**
Timber Deck	Unroofed	$450.00
	Roofed	$790.00
Pergola		$340.00
Retaining Wall	**Type**	**Square Metre Rate (Incl. GST)**
Brick Retaining Wall	Up to 1.5m high	$680.00
Block Retaining Wall	Up to 1.5m high	$680.00
Treated Pine Retaining Wall	Up to 1.5m high	$480.00

AGRICULTURAL

Farm Building	Type	Square Metre Rate (Incl. GST)
Machinery/ Hay/storage Shed – no slab	Steel frame with metal deck roof and metal clad walls (no slab- free standing one long wall open)	$270.00
Machinery/ Hay/storage Shed – with floor slab	Steel frame with metal deck roof and metal clad walls (no slab- free standing one long wall open)	$350.00

COMMERCIAL

Office/Retail shop	Type	Square Metre Rate (Incl. GST)
Office	Single Story Fully Serviced	$2,490.00
	Two Storey Fully Serviced	$2,860.00
	Fit-out	$720.00
Neighbourhood shops (excludes shops within centres/complexes – no air con)	Single Storey	$1,090.00
	Two Storey	$1,290.00
	Fit-out (in addition to above)	$410.00
Tavern & Club	**Type**	**Square Metre Rate (Incl. GST)**
Tavern	Single Storey, standard construction and finishes	$3,950.00
Club (Social or sporting club)	Single or Two Storey construction, standard construction and finishes	$3,790.00

OTHER

Religious	Type	Square Metre Rate (Incl. GST)
Chapel/Church/Synagogue	Basic Finish	$2,160.00
	Medium Finish	$3,330.00
Church hall		$1,600.00
Educational	**Type**	**Square Metre Rate (Incl. GST)**
Primary School	Single Storey Standard Finish (no air con)	$5,500.00
Child & Health care	**Type**	**Square Metre Rate (Incl. GST)**
Child Care Centre	Single Storey Standard Finish	$2,550.00
Group Practice Surgery	Single Storey Standard Finish with consulting rooms, surgery	$2,800.00

INDUSTRIAL

Industry	Type	Square Metre Rate (Incl. GST)
Warehouses for Letting (Single Storey, Shell Construction, Bay Height of 3.5m up to 4.5m)	Brick external walls	$910.00
	Precast or tilt up concrete panels	$860.00
Warehouses for Letting (Single Storey, Shell Construction, Bay Height of greater than 6.5m to 9m)	Brick external walls	$1,090.00
	Precast or tilt up concrete panels	$1,080.00
Warehouses for Owner Occupation (Single Storey, includes small offices, amenities, services, Bay Height of 3.5m up to 4.5m)	Brick external walls	$1,100.00
	Precast or tilt up concrete panels	$1,080.00
Warehouses for Owner Occupation (Single Storey, includes small offices, amenities, services, Bay Height of 6.5m up to 9.0m)	Brick external walls	$1,320.00
	Precast or tilt up concrete panels	$1,250.00
Factory for Letting (Single Storey, Span less than 10m, Standard	Framed and Metal Clad external	$880.00
	Brick external walls	$930.00
	Precast or tilt up concrete panels	$880.00
Factory for Owner Occupation (Single Storey, Span less than 10m, small office, toilets and amenities & all services)	Brick external walls	$1,180.00
	Precast or tilt up concrete panels	$1,110.00
Service Station	Single Storey, brick walls, metal roof, workshop, toilets, services	$2,300.00
	Add metal clad awning	$1,040.00
	Add for driveways	$220.00